

Amended Legislative Appropriations Request
for Fiscal Years 2028 and 2029

Submitted to the
Office of the Governor, Budget and Policy Division,
and the Legislative Budget Board

by

Eleventh Court of Appeals (Agency 231)

September 4, 2026

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Administrator's Statement

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90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

231 Eleventh Court of Appeals District, Eastland

90TH LEGISLATIVE SESSION ADMINISTRATOR'S STATEMENT

For Fiscal Years 2028 and 2029

90th Legislature

ADMINISTRATOR'S STATEMENT

The core function of Texas' intermediate appellate courts is to process, review, and decide by written opinion every appeal that is filed with them from trial courts, in civil and criminal cases, across numerous counties. These appeals include every substantive area of civil and criminal law—except for death penalty cases—and many of them must be decided on an expedited basis as mandated by the Legislature and the rules of appellate procedure.

The courts of appeals must also resolve a large number of original proceedings each fiscal year seeking extraordinary relief—such as a writ of habeas corpus, mandamus, prohibition, injunction, or quo warranto. Original proceedings, which are often filed during the pendency of litigation, commonly have voluminous records and must also be decided on an expedited basis. And many of them include a request for emergency temporary relief which must be addressed immediately.

Against this backdrop, Texas has gained more residents than any other state during the 21st century. Since 2000, the population of Texas has increased by more than 52%. More than 31 million people now live in Texas. And the vast majority are adults who look to the judiciary for resolution of their disputes as guaranteed by our Constitution. The Legislature has responded to this big increase population by creating nearly 200 new trial courts across Texas. And the Bench and the Bar have taken important steps to increase access to justice for all Texans.

New case filings in the courts of appeals began to return to their pre-COVID levels in fiscal year 2022. During the next three fiscal years (FY '23, FY '24, and FY '25), new case filings in the courts of appeals increased each fiscal year by between 4% to 8%. This is consistent with the increase in new cases experienced by the federal courts of appeals from 2022 to 2025 at nearly 4.4%.

This all changed for Texas' courts of appeals in fiscal year 2026. New case filings are increasing in FY '26 from FY '25 by 20%. And they are increasing by about 30% from FY '24—which is when the Legislature last met. See Administrator's Statement Exhibit #1 Table- New Cases Filed by Fiscal Year

When equalization transfers are taken into account, every court of appeals in Texas (except the 15th court which has different jurisdictional requirements) is experiencing these large increases in new case filings—which are anticipated to continue for the foreseeable future.

See Administrator's Statement Exhibit #2- Table- New Cases Filed by Fiscal Year- After Transfers

Two important components of this big increase in new case filings are original proceedings and pro se appeals. Together, they constitute 54% of the new cases filed in the courts of appeals in FY '26.

Original proceedings are increasing in FY '26 from FY '25 by 49%. And they are increasing in FY '26 from FY '24 by 83%. See Administrator's Statement Exhibit- #3 Table- Original Proceedings

Meanwhile, pro se appeals are increasing in FY '26 from FY '25 by 36%. And they are increasing in FY '26 from FY '24 by 68%. See Administrator's Statement Exhibit- #3 Table- New Cases Filed by Pro Se Litigants

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Yet, in the face of this dramatic growth, the number of staff attorneys (and other staff) at the courts of appeals who assist the justices with their workload has remained largely the same.

A key factor in handling the increasing workload without additional justices is the employment of highly skilled and trained staff attorneys (and other staff). They maximize the productivity of justices by processing complex cases, researching and drafting preliminary drafts of orders and opinions, disposing of voluminous motions, and managing accelerated and emergency matters.

The large population growth across the State and the magnitude of new case filings, in concert with an ever-increasing number of case types requiring expedited review, make it clear that the courts of appeals require additional staff attorneys, and/or other staff, to manage their growing dockets and to efficiently provide the timely, high-quality justice to which all citizens of Texas are entitled.

In that regard, the courts of appeals, collectively, began in the 79th and 80th Legislative Sessions to work toward a zero-based budget model referred to as “Similar Funding for Same-Sized Courts.” This model quantified the funding required to meet the personnel and operational needs of the courts, thus enabling the courts to accomplish their core function and meet their performance measures. The Similar Funding for Same-Sized Courts initiative was fully funded for the first time in 2015, and the courts had been operating under the same zero-based budget model and funding levels until the 88th Legislative Session when the Legislature increased the budgets for the intermediate appellate courts.

Based upon a template of same-size courts, the courts of appeals are now asking the Legislature for additional staff attorneys, and/or other staff, to match the nearly 30% increase in new case filings since FY '24—subject to the particularized request of each court of appeals. See Administrator’s Statement Exhibit #4- Template of Same-Sized Courts.

Without a sufficient number of qualified staff attorneys, and/or other staff, the courts of appeals are largely unable to handle the increasing volume of new case filings each fiscal year and comply with Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The courts of appeals are appreciative of the increased funding for existing staff attorneys received last session. It is important and enables the courts of appeals to hire and retain qualified individuals for their existing staff attorney positions, and other staff. The courts of appeals are now faced with the need to increase the number of their staff attorney positions, and/or other staff, in order to keep pace with the growth of Texas and the large increase in new case filings. But they currently lack the funding to do so.

And now the courts of appeals have been instructed to reduce their base appropriation request for the 2028-29 biennium by 3%. Unlike other state agencies, 96.5% of each court of appeals’ budget, on average, is dedicated to salaries and benefits. This budget reduction would thus result in a disproportionate and highly negative impact on the courts of appeals. The only way to absorb such a budget reduction is to cut court staff. This is counter-intuitive and unsustainable in light of the substantial increase in new case filings. Additionally, there is virtually no benefit to the State from a 3% budget cut on the courts of appeals. Indeed, funding for all of the courts of appeals comprises less than 0.04% of the State budget as a whole. And a 3% budget cut on the courts of appeals would approximately yield only a 0.002% reduction in the entire State budget.

Mindful of that, and of the critical role that the courts of appeals perform for all Texans, additional funding for additional staff attorneys, and/or other staff, as specifically

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requested by each court of appeals, is now necessary for the courts of appeals to ensure the efficient and timely administration of justice going forward.

EXCEPTIONAL ITEM #1: RESTORE THE 3% BUDGET CUT.

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The Eleventh Court of Appeals therefore respectfully requests a restoration to General Revenue funding in the amount of \$139,370.00.

EXCEPTIONAL ITEM #2: ADDITIONAL FULL TIME STAFF ATTORNEYS DUE TO THE SUBSTANTIAL INCREASE IN NEW CASE FILINGS.

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Eleventh Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for 4 additional full time staff attorneys.

These additional staff attorneys are necessary because the Eleventh Court of Appeals has experienced a 23% increase in new case filings from FY '25 to FY '26. And a 19% increase from FY '24 to FY '26. These increases are beyond the current capacity of the Eleventh Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The total anticipated expense for these requested FTEs in Biennium 2028-29 for the Eleventh Court of Appeals is broken down as follows:

- 1) Salaries and wages- \$1,136,000.00
- 2) Other operating expense- \$54,232.00

EXCEPTIONAL ITEM #3: RECRUITMENT AND RETENTION OF JUDICIAL-BRANCH STAFF.

Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. The courts of appeals join with the Supreme Court of Texas and the other Article IV courts and agencies in requesting a 3% annual increase in staff pay throughout the Article IV courts and agencies in Fiscal Year '28 and also in Fiscal Year '29 to help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and other staff. The Eleventh Court of Appeals, in conjunction with the rest of the judicial branch, therefore requests a 3% increase in staff salaries in Fiscal Year '28 and an additional 3% increase in Fiscal Year '29.

SPECIAL PROVISIONS/RIDER EXCEPTION REQUESTS:

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The courts of appeals also request the following with regard to the SPECIAL PROVISIONS – JUDICIARY found in Article IV (beginning at p. IV-42 of the General Appropriations Act for the 2026-27 Biennium) concerning across-the-board riders:

1. Retain Special Provisions – Judiciary, Sec. 3, Appellate Court Exemptions pertaining to the following Article IX riders: Section 6.10, Limitations on State Employment Levels, Section 6.13, Performance Standards, Section 14.03, Transfers – Capital Budget, and Section 3.04, Scheduled Exempt Positions.
2. Retain Special Provisions – Judiciary, Sec. 5, Interagency Contracts for Assigned Judges for Appellate Courts
3. Retain Special Provisions – Judiciary, Sec. 6, Appellate Court Transfer Authority

Historically, the Legislature has granted the courts' exemption from certain limitations in the General Appropriations Act. The Legislature has also granted the courts the authority to carry over unexpended budget balances between years within the biennium. The flexibility afforded by these measures enhances the courts' management ability, and we seek continuation of these budget features.

4. Add Special Provision – Traveling Justices and Judges and Mileage Reimbursement

Appellate court justices and judges that travel for official state business in a personal vehicle should be exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car (as is currently the case for children's court and business court state who travel regularly for official state business). (See Article IV Appropriation for OCA, Texas Judicial Council – Item No. 7 entitled "Mileage Reimbursement for Children's Courts and Business Court Staff").

ADDITIONAL STATEMENTS OF SUPPORT:

In order for the courts of appeals to function efficiently, it is vital that the Office of Court Administration (OCA) be adequately funded. The courts of appeals rely on many of the services provided by OCA and, therefore, the courts of appeals fully support the exceptional items the OCA requests as part of its funding. More specifically, the courts of appeals strongly support the request for funding related to the acquisition of a new appellate case management system to replace the current system known as TAMES as well as a case-level data system.

If the Legislature appropriates a cost-of-living increase to state employees, the courts of appeals request that all court employees be included in any such cost-of-living increase.

Finally, the courts of appeals wish to express appreciation to and support for the Judicial Compensation Commission and the Legislature's efforts to strengthen the justice system by increasing judicial salaries to attract and retain a strong judiciary. The courts of appeals request the Legislature implement the Judicial Compensation Commission's recommendations for an increase in judicial compensation.

Note: on Appropriated Receipts – At the direction of the LBB & Governor's Office, the Eleventh Court of Appeals has included appropriated receipts in the amount of \$4,000.00 reflecting reimbursement for copies of opinions and other court documents. These amounts are merely an offset for additional expenses incurred by the Court and do not constitute additional funds available for general expenditures for the Court. The amount can vary significantly from year to year.

Administrator's Statement Exhibit #1

New Cases Filed by Fiscal Year

	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to		Difference from FY 24 to		
				FY26	% Difference	FY26	% Difference	
1st/Houston	952	1,042	1,293	251	24%	341	36%	
2nd/Fort Worth	1,000	1,133	1,411	278	25%	411	41%	
3rd/Austin	922	940	1,193	253	27%	271	29%	
4th/San Antonio	861	864	951	87	10%	90	10%	
5th/Dallas	1,451	1,629	1,896	267	16%	445	31%	
6th/Texarkana	253	269	275	6	2%	22	9%	
7th/Amarillo	308	287	311	24	8%	3	1%	
8th/El Paso	337	221	283	62	28%	-54	-16%	Unusual, one-month spike occurred
9th/Beaumont	408	473	568	95	20%	160	39%	
10th/Waco	444	443	567	124	28%	123	28%	
11th/Eastland	300	290	358	68	23%	58	19%	
12th/Tyler	320	290	351	61	21%	31	10%	
13th/Corpus Christi	509	552	698	146	26%	189	37%	
14th/Houston	923	1,073	1,328	255	24%	405	44%	
15th/Statewide	N/A	135	120	-15	-11%	N/A	N/A	
Total FYTD	8,988	9,641	11,603	1,962	20%	2,615	29%	

Administrator's Statement Exhibit #2

New Cases Filed by Fiscal Year - After Transfers

	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to FY26	% Difference	Difference from FY 24 to FY26	% Difference	
1st/Houston	981	1,060	1,305	245	23%	324	33%	
2nd/Fort Worth	863	921	1,053	132	14%	190	22%	
3rd/Austin	732	834	879	45	5%	147	20%	
4th/San Antonio	644	782	931	149	19%	287	44%	
5th/Dallas	1,490	1,614	1,817	203	13%	327	22%	
6th/Texarkana	308	330	380	50	15%	72	23%	
7th/Amarillo	431	399	545	146	37%	114	26%	
8th/El Paso	453	319	428	109	34%	-25	-6%	Unusual, one-month spike occurred
9th/Beaumont	417	472	531	59	13%	114	27%	
10th/Waco	322	374	461	87	23%	139	43%	
11th/Eastland	325	330	411	81	25%	86	26%	
12th/Tyler	363	299	427	128	43%	64	18%	
13th/Corpus Christi	626	665	875	210	32%	249	40%	
14th/Houston	950	1,079	1,315	236	22%	365	38%	
15th/Statewide	N/A	254	244	-10	-4%	N/A	N/A	
Total FYTD	8,905	9,732	11,602	1,870	19%	2,697	30%	

Administrator's Statement Exhibit #3

Original Proceedings										
Court	22	23	24	25	FY 26 (projected)	Difference from FY 25		Difference from FY 24 to		
						to FY26	% Difference	FY26	% Difference	
1	221	176	176	186	252	66	36%	76	43%	
2	80	55	97	120	200	80	66%	103	106%	
3	144	113	122	159	261	102	64%	139	114%	
4	112	112	115	141	199	58	41%	84	73%	
5	214	228	225	297	465	168	56%	240	106%	
6	31	29	19	38	49	11	28%	30	157%	
7	59	38	40	25	23	-2	-7%	-17	-42%	
8	29	26	29	49	87	38	78%	58	201%	
9	46	56	51	49	82	33	66%	31	60%	
10	86	81	58	58	115	57	99%	57	99%	
11	48	45	30	34	39	5	15%	9	30%	
12	39	58	36	45	58	13	29%	22	61%	
13	90	97	90	115	190	75	65%	100	111%	
14	219	178	159	187	239	52	28%	80	50%	
15	N/A	N/A	N/A	32	26	-6	-18%	N/A	N/A	
Total original proceedings filed										
New cases filed										
Orig proceedings as % of new cases filed										

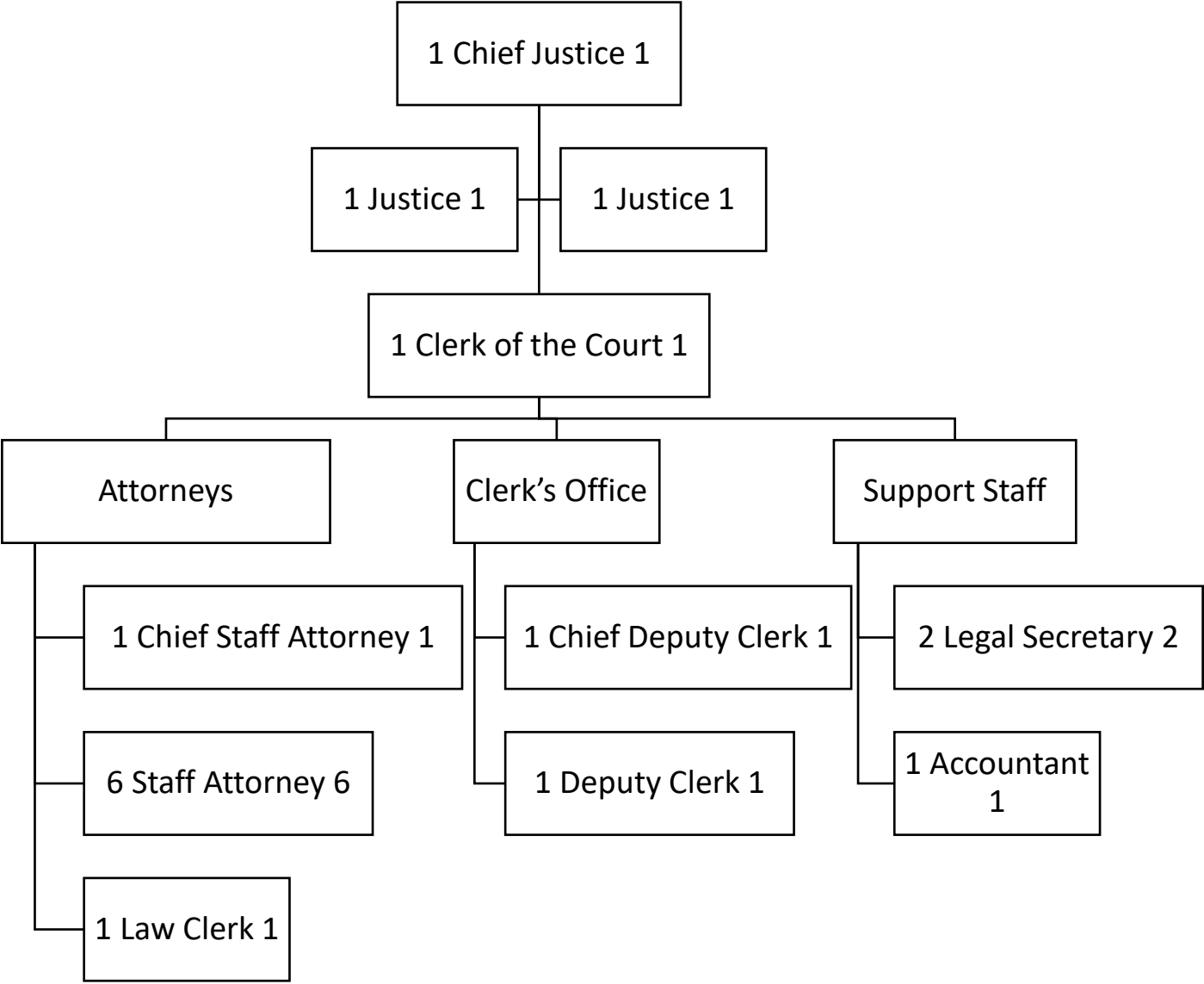
New Cases Filed by Pro Se Litigants										
Court	22	23	24	25	FY 26 (projected)	Difference from FY 25		Difference from FY 24 to		
						to FY26	% Difference	FY26	% Difference	
1	242	228	226	289	357	68	24%	131	58%	
2	198	221	267	334	439	105	31%	172	64%	
3	205	202	229	320	447	127	40%	218	95%	
4	144	151	141	201	265	64	32%	124	88%	
5	373	420	527	600	728	128	21%	201	38%	
6	42	50	39	67	95	28	41%	56	142%	
7	122	119	90	108	124	16	15%	34	37%	
8	61	66	70	62	158	96	154%	88	125%	
9	73	99	86	97	177	80	83%	91	106%	
10	144	120	118	125	191	66	53%	73	62%	
11	110	103	93	103	95	-9	-8%	2	2%	
12	77	56	77	72	92	20	28%	15	20%	
13	136	148	148	167	254	87	52%	106	72%	
14	252	246	236	321	429	108	34%	193	82%	
15	N/A	N/A	N/A	33	89	56	169%	N/A	N/A	
Total cases filed by pro se litigants										
New cases filed										
% of new cases filed by pro se litigants										

Administrator's Statement Exhibit #4

Template of Same-Sized Courts

COURT SIZE	NUMBER OF NEW STAFF ATTORNEYS AND/OR STAFF
13 JUSTICES	9
9 JUSTICES	8
6-7 JUSTICES	6
3-4 JUSTICES	4

Organizational Chart
Eleventh Court of Appeals





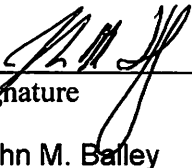
CERTIFICATE

Agency Name Eleventh Court of Appeals

This is to certify that the information contained in the agency Legislative Appropriations Request filed with the Legislative Budget Board (LBB) and the Office of the Governor, Budget and Policy Division, is accurate to the best of my knowledge and that the electronic submission to the LBB via the Automated Budget and Evaluation System of Texas (ABEST) and the PDF file submitted via the LBB Document Submission application are identical.

Additionally, should it become likely at any time that unexpended balances will accrue for any account, the LBB and the Office of the Governor will be notified in writing in accordance with Senate Bill 1, Article IX, Section 7.01, Eighty-ninth Legislature, Regular Session, 2025.

Chief Executive Office or Presiding Judge



Signature

John M. Bailey

Printed Name

Chief Justice

Title

September 4, 2026

Date

Board or Commission Chair

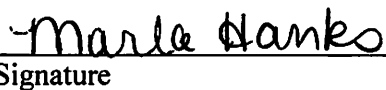
Signature

Printed Name

Title

Date

Chief Financial Officer



Signature

Marla Hanks

Printed Name

Clerk of the Court

Title

September 4, 2026

Date

Budget Overview - Biennial Amounts
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

231 Eleventh Court of Appeals District, Eastland
Appropriation Years: 2028-29

	GENERAL REVENUE FUNDS		GR DEDICATED		FEDERAL FUNDS		OTHER FUNDS		ALL FUNDS		EXCEPTIONAL ITEM FUNDS
	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2028-29
Goal: 1. Appellate Court Operations											
1.1.1. Appellate Court Operations	3,397,830	3,296,090					4,710	8,000	3,402,540	3,304,090	1,431,604
1.1.2. Appellate Justice Salaries	1,247,836	1,210,206					184,900	184,900	1,432,736	1,395,106	37,630
Total, Goal	4,645,666	4,506,296					189,610	192,900	4,835,276	4,699,196	1,469,234
Total, Agency	4,645,666	4,506,296					189,610	192,900	4,835,276	4,699,196	1,469,234
Total FTEs									17.5	17.0	4.0

2.A. Summary of Base Request by Strategy

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Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
1 APPELLATE COURT OPERATIONS	1,603,011	1,699,625	1,702,915	1,652,045	1,652,045
2 APPELLATE JUSTICE SALARIES	557,735	716,368	716,368	697,553	697,553
TOTAL, GOAL 1	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598
TOTAL, AGENCY STRATEGY REQUEST	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST*				\$0	\$0
GRAND TOTAL, AGENCY REQUEST	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598

2.A. Summary of Base Request by Strategy

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Automated Budget and Evaluation System of Texas (ABEST)

231 Eleventh Court of Appeals District, Eastland

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>METHOD OF FINANCING:</u>					
General Revenue Funds:					
1 General Revenue Fund	2,066,767	2,322,833	2,322,833	2,253,148	2,253,148
SUBTOTAL	\$2,066,767	\$2,322,833	\$2,322,833	\$2,253,148	\$2,253,148
Other Funds:					
573 Judicial Fund	92,450	92,450	92,450	92,450	92,450
666 Appropriated Receipts	1,529	710	4,000	4,000	4,000
SUBTOTAL	\$93,979	\$93,160	\$96,450	\$96,450	\$96,450
TOTAL, METHOD OF FINANCING	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598

*Rider appropriations for the historical years are included in the strategy amounts.

2.B. Summary of Base Request by Method of Finance

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Automated Budget and Evaluation System of Texas (ABEST)

Agency code:	231	Agency name:	Eleventh Court of Appeals District, Eastland			
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
<u>1</u>	General Revenue Fund					
	REGULAR APPROPRIATIONS					
	Regular Appropriations from MOF Table (2024-25 GAA)	\$2,008,468	\$0	\$0	\$0	\$0
	Regular Appropriations from MOF Table (2026-27 GAA)	\$0	\$2,090,406	\$2,090,406	\$0	\$0
	Regular Appropriations from MOF Table (2028-29 GAA)	\$0	\$0	\$0	\$2,253,148	\$2,253,148
	RIDER APPROPRIATION					
	Rider Appropriation Art IX Sec 18.83, Contingency for SB 293	\$0	\$145,725	\$145,725	\$0	\$0
	TRANSFERS					
	Art IX, Sec 17.15, Appropriation for a Salary Increase for Licensed Attorneys (2026-27 GAA)(estimated)	\$0	\$60,523	\$60,523	\$0	\$0
	LAPSED APPROPRIATIONS					

2.B. Summary of Base Request by Method of Finance

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Agency code: 231	Agency name: Eleventh Court of Appeals District, Eastland				
METHOD OF FINANCING	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>					
Regular Appropriations from MOF Table (2024-25 GAA)					
	\$(8,147)	\$0	\$0	\$0	\$0
Comments: B.1.1 unused funds					
Regular Appropriations from MOF Table (2024-25 GAA)					
	\$(4,194)	\$0	\$0	\$0	\$0
<i>UNEXPENDED BALANCES AUTHORITY</i>					
Art IX, Special Provisions, Sec 9, Unexpended Balance Authority (2024-25 GAA)					
	\$60,727	\$0	\$0	\$0	\$0
<i>BASE ADJUSTMENT</i>					
Regular Appropriations from MOF Table (2026-27 GAA)					
	\$0	\$26,179	\$26,179	\$0	\$0
Comments: additional funds needed for judicial salaries					
Regular Appropriations from MOF Table (2024-25 GAA)					
	\$9,913	\$0	\$0	\$0	\$0
Comments: additional funds needed for judicial salaries					

2.B. Summary of Base Request by Method of Finance

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Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 231		Agency name: Eleventh Court of Appeals District, Eastland				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
TOTAL,	General Revenue Fund					
		\$2,066,767	\$2,322,833	\$2,322,833	\$2,253,148	\$2,253,148
TOTAL, ALL	GENERAL REVENUE					
		\$2,066,767	\$2,322,833	\$2,322,833	\$2,253,148	\$2,253,148
<u>OTHER FUNDS</u>						
<u>573</u>	Judicial Fund No. 573					
	<i>REGULAR APPROPRIATIONS</i>					
	Regular Appropriations from MOF Table (2026-27 GAA)					
		\$0	\$92,450	\$92,450	\$0	\$0
	Regular Appropriations from MOF Table (2024-25 GAA)					
		\$92,450	\$0	\$0	\$0	\$0
	Regular Appropriations from MOF Table (2028-29 GAA)					
		\$0	\$0	\$0	\$92,450	\$92,450
TOTAL,	Judicial Fund No. 573					
		\$92,450	\$92,450	\$92,450	\$92,450	\$92,450
<u>666</u>	Appropriated Receipts					
	<i>REGULAR APPROPRIATIONS</i>					

2.B. Summary of Base Request by Method of Finance

9/4/2026 1:23:27PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 231		Agency name: Eleventh Court of Appeals District, Eastland				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
Regular Appropriations from MOF Table (2024-25 GAA)		\$8,000	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$4,000	\$4,000	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$4,000	\$4,000
<i>LAPSED APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)		\$(6,471)	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)		\$0	\$(3,290)	\$0	\$0	\$0
TOTAL,	Appropriated Receipts	\$1,529	\$710	\$4,000	\$4,000	\$4,000
TOTAL, ALL	OTHER FUNDS	\$93,979	\$93,160	\$96,450	\$96,450	\$96,450

2.B. Summary of Base Request by Method of Finance

9/4/2026 1:23:27PM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 231	Agency name: Eleventh Court of Appeals District, Eastland				
METHOD OF FINANCING	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
GRAND TOTAL	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598

FULL-TIME-EQUIVALENT POSITIONS

REGULAR APPROPRIATIONS

Regular Appropriations from MOF Table (2024-25 GAA)	17.5	0.0	0.0	0.0	0.0
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Regular Appropriations from MOF Table (2026-27 GAA)	0.0	17.5	17.5	0.0	0.0
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Regular Appropriations from MOF Table (2028-29 GAA)	0.0	0.0	0.0	17.0	17.0
--	-----	-----	-----	------	------

UNAUTHORIZED NUMBER OVER (BELOW) CAP

unauthorized below cap	(0.1)	0.0	0.0	0.0	0.0
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TOTAL, ADJUSTED FTES	17.4	17.5	17.5	17.0	17.0
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**NUMBER OF 100% FEDERALLY
FUNDED FTES**

2.C. Summary of Base Request by Object of Expense

9/4/2026 1:23:27PM

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)**231 Eleventh Court of Appeals District, Eastland**

OBJECT OF EXPENSE	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1001 SALARIES AND WAGES	\$1,936,161	\$2,265,890	\$2,225,340	\$2,161,104	\$2,161,104
1002 OTHER PERSONNEL COSTS	\$97,800	\$7,160	\$40,952	\$40,064	\$40,064
2003 CONSUMABLE SUPPLIES	\$5,429	\$5,061	\$8,351	\$8,350	\$8,350
2004 UTILITIES	\$6,861	\$6,387	\$6,387	\$6,387	\$6,387
2005 TRAVEL	\$3,765	\$2,018	\$2,018	\$2,018	\$2,018
2007 RENT - MACHINE AND OTHER	\$1,051	\$1,041	\$1,041	\$1,041	\$1,041
2009 OTHER OPERATING EXPENSE	\$109,679	\$128,436	\$135,194	\$130,634	\$130,634
OOE Total (Excluding Riders)	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598
OOE Total (Riders)					
Grand Total	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598

2.C.1. Operating Costs Detail ~ Base Request

Date: 9/4/2026
Time: 1:23:29PM90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Agency Code: 231 Agency: Eleventh Court of Appeals District, Eastland

BASE REQUEST STRATEGY: 1-1-1 Appellate Court Operations

Code	Type of Expense	Expended	Estimated	Budgeted	Requested	Requested
1	Consumable Supplies	\$5,300	\$5,300	\$5,300	\$5,300	\$5,300
4	Travel	2,000	2,000	2,500	2,500	2,500
5	Westlaw/Lexis	35,000	40,000	48,000	49,000	50,000
41	Telecommunication Charges	4,200	4,200	4,200	4,200	4,200
64	SORM Assessment	2,500	2,500	2,500	2,500	2,500
125	Books - Npt Cap.	36,000	36,000	36,000	36,000	36,000
154	Waste Disposal Services	1,800	1,800	1,800	1,800	1,800
Total, Operating Costs		\$86,800	\$91,800	\$100,300	\$101,300	\$102,300

2.D. Summary of Base Request Objective Outcomes
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation system of Texas (ABEST)

9/4/2026 1:23:27PM

231 Eleventh Court of Appeals District, Eastland					
<i>Goal/ Objective / Outcome</i>	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
KEY 1 Clearance Rate					
	89.26%	95.00%	100.00%	100.00%	100.00%
KEY 2 Percentage of Cases Under Submission for Less Than One Year					
	76.34%	100.00%	100.00%	100.00%	100.00%
KEY 3 Percentage of Cases Pending for Less Than Two Years					
	95.83%	100.00%	100.00%	100.00%	100.00%

2.E. Summary of Exceptional Items Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME : 1:23:27PM

Agency code: 231

Agency name: Eleventh Court of Appeals District, Eastland

		2028			2029			Biennium	
Priority	Item	GR and GR/GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds
1	Restore the 3% Budget Cut	\$69,685	\$69,685		\$69,685	\$69,685		\$139,370	\$139,370
2	Fully Staff the Court of Appeals	\$596,766	\$596,766	4.0	\$593,466	\$593,466	4.0	\$1,190,232	\$1,190,232
3	Recruit & Retain Staff	\$46,309	\$46,309		\$93,323	\$93,323		\$139,632	\$139,632
Total, Exceptional Items Request		\$712,760	\$712,760	4.0	\$756,474	\$756,474	4.0	\$1,469,234	\$1,469,234
Method of Financing									
	General Revenue	\$712,760	\$712,760		\$756,474	\$756,474		\$1,469,234	\$1,469,234
	General Revenue - Dedicated								
	Federal Funds								
	Other Funds								
		\$712,760	\$712,760		\$756,474	\$756,474		\$1,469,234	\$1,469,234
Full Time Equivalent Positions				4.0				4.0	
Number of 100% Federally Funded FTEs									

2.F. Summary of Total Request by Strategy
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE : 9/4/2026
 TIME : 1:23:28PM

Agency code: 231	Agency name: Eleventh Court of Appeals District, Eastland					
Goal/Objective/STRATEGY	Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
1 Appellate Court Operations						
1 Appellate Court Operations						
1 APPELLATE COURT OPERATIONS	\$1,652,045	\$1,652,045	\$693,945	\$737,659	\$2,345,990	\$2,389,704
2 APPELLATE JUSTICE SALARIES	697,553	697,553	18,815	18,815	716,368	716,368
TOTAL, GOAL 1	\$2,349,598	\$2,349,598	\$712,760	\$756,474	\$3,062,358	\$3,106,072
TOTAL, AGENCY STRATEGY REQUEST	\$2,349,598	\$2,349,598	\$712,760	\$756,474	\$3,062,358	\$3,106,072
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST						
GRAND TOTAL, AGENCY REQUEST	\$2,349,598	\$2,349,598	\$712,760	\$756,474	\$3,062,358	\$3,106,072

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 9/4/2026
TIME : 1:23:28PM

Agency code: 231		Agency name: Eleventh Court of Appeals District, Eastland					
Goal/Objective/STRATEGY		Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
General Revenue Funds:							
1	General Revenue Fund	\$2,253,148	\$2,253,148	\$712,760	\$756,474	\$2,965,908	\$3,009,622
		\$2,253,148	\$2,253,148	\$712,760	\$756,474	\$2,965,908	\$3,009,622
Other Funds:							
573	Judicial Fund	92,450	92,450	0	0	92,450	92,450
666	Appropriated Receipts	4,000	4,000	0	0	4,000	4,000
		\$96,450	\$96,450	\$0	\$0	\$96,450	\$96,450
TOTAL, METHOD OF FINANCING		\$2,349,598	\$2,349,598	\$712,760	\$756,474	\$3,062,358	\$3,106,072
FULL TIME EQUIVALENT POSITIONS		17.0	17.0	4.0	4.0	21.0	21.0

2.G. Summary of Total Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

Date : 9/4/2026
 Time: 1:23:28PM

Agency code: **231** Agency name: **Eleventh Court of Appeals District, Eastland**

Goal/ Objective / Outcome

		BL 2028	BL 2029	Excp 2028	Excp 2029	Total Request 2028	Total Request 2029
1	Appellate Court Operations						
1	Appellate Court Operations						
KEY	1 Clearance Rate						
		100.00%	100.00%			100.00%	100.00%
KEY	2 Percentage of Cases Under Submission for Less Than One Year						
		100.00%	100.00%			100.00%	100.00%
KEY	3 Percentage of Cases Pending for Less Than Two Years						
		100.00%	100.00%			100.00%	100.00%

231 Eleventh Court of Appeals District, Eastland

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Output Measures:						
1	Number of Civil Cases Disposed	158.00	171.00	171.00	171.00	171.00
2	Number of Criminal Cases Disposed	166.00	182.00	182.00	182.00	182.00
Explanatory/Input Measures:						
1	Number of Civil Cases Filed	130.00	164.00	164.00	164.00	164.00
2	Number of Criminal Cases Filed	160.00	169.00	169.00	169.00	169.00
3	Number of Cases Transferred in	14.00	55.00	55.00	55.00	55.00
4	Number of Cases Transferred out	26.00	2.00	2.00	2.00	2.00
Objects of Expense:						
1001	SALARIES AND WAGES	\$1,399,294	\$1,549,522	\$1,549,522	\$1,503,036	\$1,503,036
1002	OTHER PERSONNEL COSTS	\$82,300	\$7,160	\$7,160	\$7,160	\$7,160
2003	CONSUMABLE SUPPLIES	\$5,429	\$5,061	\$8,351	\$8,350	\$8,350
2004	UTILITIES	\$6,861	\$6,387	\$6,387	\$6,387	\$6,387
2005	TRAVEL	\$3,765	\$2,018	\$2,018	\$2,018	\$2,018
2007	RENT - MACHINE AND OTHER	\$1,051	\$1,041	\$1,041	\$1,041	\$1,041
2009	OTHER OPERATING EXPENSE	\$104,311	\$128,436	\$128,436	\$124,053	\$124,053
TOTAL, OBJECT OF EXPENSE		\$1,603,011	\$1,699,625	\$1,702,915	\$1,652,045	\$1,652,045

231 Eleventh Court of Appeals District, Eastland

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Method of Financing:						
1	General Revenue Fund	\$1,601,482	\$1,698,915	\$1,698,915	\$1,648,045	\$1,648,045
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$1,601,482	\$1,698,915	\$1,698,915	\$1,648,045	\$1,648,045
Method of Financing:						
666	Appropriated Receipts	\$1,529	\$710	\$4,000	\$4,000	\$4,000
SUBTOTAL, MOF (OTHER FUNDS)		\$1,529	\$710	\$4,000	\$4,000	\$4,000
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$1,652,045	\$1,652,045
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$1,603,011	\$1,699,625	\$1,702,915	\$1,652,045	\$1,652,045
FULL TIME EQUIVALENT POSITIONS:		14.4	14.5	14.5	14.0	14.0

STRATEGY DESCRIPTION AND JUSTIFICATION:

The Eleventh Court of Appeals was created in 1925, Acts 1925, 39th Leg., Chap 87, Sec. 3. See Tex.Govt. Code, Sec. 22.212. This Court has intermediate appellate jurisdiction in civil cases where the judgment rendered exceeds \$100, exclusive of costs, and in criminal cases, except those in which the death penalty has been assessed. We have geographical jurisdiction of decisions of the 40 trial courts of the Eleventh District which includes 26 district courts, 6 county courts at law and 28 county courts. There are 28 counties in our judicial district.

231 Eleventh Court of Appeals District, Eastland

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

Court of Appeals are, by nature, similar to small agencies with highly specialized staff. The main factor which drives this strategy is the need to attract and retain highly trained and knowledgeable staff to work on an increasing caseload.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$3,402,540	\$3,304,090	\$ (98,450)	\$ (98,450)	To effectuate the three percent reduction required in the General Revenue-Related limits establishing each agency's 2028-29 base amount, per Governor's policy letter
			<u>\$ (98,450)</u>	Total of Explanation of Biennial Change

231 Eleventh Court of Appeals District, Eastland

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Objects of Expense:						
1001	SALARIES AND WAGES	\$536,867	\$716,368	\$675,818	\$658,068	\$658,068
1002	OTHER PERSONNEL COSTS	\$15,500	\$0	\$33,792	\$32,904	\$32,904
2009	OTHER OPERATING EXPENSE	\$5,368	\$0	\$6,758	\$6,581	\$6,581
TOTAL, OBJECT OF EXPENSE		\$557,735	\$716,368	\$716,368	\$697,553	\$697,553
Method of Financing:						
1	General Revenue Fund	\$465,285	\$623,918	\$623,918	\$605,103	\$605,103
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$465,285	\$623,918	\$623,918	\$605,103	\$605,103
Method of Financing:						
573	Judicial Fund	\$92,450	\$92,450	\$92,450	\$92,450	\$92,450
SUBTOTAL, MOF (OTHER FUNDS)		\$92,450	\$92,450	\$92,450	\$92,450	\$92,450
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$697,553	\$697,553
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$557,735	\$716,368	\$716,368	\$697,553	\$697,553
FULL TIME EQUIVALENT POSITIONS:		3.0	3.0	3.0	3.0	3.0

231 Eleventh Court of Appeals District, Eastland

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 2 Appellate Justice Salaries. Estimated and Nontransferable

Service Categories:
Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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STRATEGY DESCRIPTION AND JUSTIFICATION:

General Revenue funding is dedicated to Strategy A.1.2. (judicial salaries and other personnel costs for the elected Justices serving the Court).

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

Judicial salaries are set by statute.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$1,432,736	\$1,395,106	\$(37,630)	\$(37,630)	To effectuate the three percent reduction required in the General Revenue-Related limits establishing each agency's 2028-29 base amount, per Governor's policy letter, includes the loss of zero FTE.
			\$(37,630)	Total of Explanation of Biennial Change

SUMMARY TOTALS:

OBJECTS OF EXPENSE:	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598
METHODS OF FINANCE (INCLUDING RIDERS):				\$2,349,598	\$2,349,598
METHODS OF FINANCE (EXCLUDING RIDERS):	\$2,160,746	\$2,415,993	\$2,419,283	\$2,349,598	\$2,349,598
FULL TIME EQUIVALENT POSITIONS:	17.4	17.5	17.5	17.0	17.0

3.B. Rider Revisions and Additions Request

Agency Code: 231	Agency Name: Eleventh Court of Appeals	Prepared By: Marla Hanks	Date: August 7, 2026	Request Level: Baseline
Current Rider Number	Page Number in 2026–2027 GAA	Proposed Rider Language		

2, 3, 4, 6,
7, 8

No changes recommended for Riders 2, 3, 4, 6, 7, and 8

5

IV-43

Sec. 5. Interagency Contracts for Assigned Judges for Appellate Courts. Out of funds appropriated in this Article to Strategies A.1.1., Appellate Court Operations, the Supreme Court of Texas, the Court of Criminal Appeals, or any of the 15 Courts of Appeals may enter into a contract with the Office of the Comptroller for fiscal years ~~2026~~2028 and ~~2027~~2029, for the purpose of reimbursing the Comptroller for amounts expended for judges assigned under Chapter 74, Government Code to hear cases of the appellate courts. It is the intent of the Legislature that any amounts reimbursed under this contract for judges assigned to the appellate courts are in addition to amounts appropriated for the use of assigned judges in Strategy A.1.3. Visiting Judges – Appellate in the Judiciary Section, Comptroller’s Department.

Adjusting the years in the rider for the 2028-2029 biennium.

9

IV-44

Sec. 9. Unexpended Balance Authority. Any unexpended and unobligated balances remaining in non-estimated strategies at the Supreme Court of Texas, Court of Criminal Appeals, 15 Courts of Appeals, Office of Court Administration, Office of Capital and Forensic Writs, Office of the State Prosecuting Attorney, State Commission on Judicial Conduct, and State Law Library as of August 31, ~~2026~~2028, are appropriated to the respective court or agency for the fiscal year beginning September 1, ~~2026~~2028, for the same purpose.

Updating the rider to adjust the years for the 2028-2029 biennium.

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IV

Mileage Reimbursement for Appellate Court Staff. Appellate court staff who travel regularly to hear case dockets may be reimbursed for mileage at the state-approved rate when they travel for official state business in a personal vehicle. These staff are also exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car.

3.B. Rider Revisions and Additions Request (continued)

Requesting addition of the cost comparison exemption for the appellate courts that is afforded to the other court personnel within the judiciary.

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME: 1:23:29PM

Agency code: 231 Agency name: Eleventh Court of Appeals District, Eastland

CODE	DESCRIPTION		Excp 2028	Excp 2029
	Item Name:	Restore the 3% Budget Cut		
	Item Priority:	1		
	IT Component:	No		
	Anticipated Out-year Costs:	No		
	Involve Contracts > \$50,000:	No		
	Includes Funding for the Following Strategy or Strategies:	01-01-01 Appellate Court Operations		
		01-01-02 Appellate Justice Salaries. Estimated and Nontransferable		
OBJECTS OF EXPENSE:				
1001	SALARIES AND WAGES		68,620	68,620
1002	OTHER PERSONNEL COSTS		887	887
2009	OTHER OPERATING EXPENSE		178	178
	TOTAL, OBJECT OF EXPENSE		\$69,685	\$69,685
METHOD OF FINANCING:				
1	General Revenue Fund		69,685	69,685
	TOTAL, METHOD OF FINANCING		\$69,685	\$69,685

DESCRIPTION / JUSTIFICATION:

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The Eleventh Court of Appeals therefore respectfully requests a restoration to General Revenue funding in the amount of \$139,370.00.

EXTERNAL/INTERNAL FACTORS:

See charts in administrator's statement.

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME: 1:23:29PM

Agency code: 231 Agency name: Eleventh Court of Appeals District, Eastland

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Additional full time staff attorneys due to the substantial increase in new case filings		
	Item Priority: 2		
	IT Component: No		
	Anticipated Out-year Costs: No		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	568,000	568,000
2009	OTHER OPERATING EXPENSE	28,766	25,466
	TOTAL, OBJECT OF EXPENSE	\$596,766	\$593,466
METHOD OF FINANCING:			
1	General Revenue Fund	596,766	593,466
	TOTAL, METHOD OF FINANCING	\$596,766	\$593,466
FULL-TIME EQUIVALENT POSITIONS (FTE):		4.00	4.00

DESCRIPTION / JUSTIFICATION:

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Eleventh Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for 4 additional full time staff attorneys.

EXTERNAL/INTERNAL FACTORS:

See charts in administrator's statement.

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME: 1:23:29PM

Agency code: 231 Agency name: Eleventh Court of Appeals District, Eastland

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Recruitment and Retention of Judicial-Branch Staff		
	Item Priority: 3		
	IT Component: No		
	Anticipated Out-year Costs: No		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	45,625	92,620
2009	OTHER OPERATING EXPENSE	684	703
	TOTAL, OBJECT OF EXPENSE	\$46,309	\$93,323
METHOD OF FINANCING:			
1	General Revenue Fund	46,309	93,323
	TOTAL, METHOD OF FINANCING	\$46,309	\$93,323

DESCRIPTION / JUSTIFICATION:

Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. The courts of appeals join with the Supreme Court of Texas and the other Article IV courts and agencies in requesting a 3% annual increase in staff pay throughout the Article IV courts and agencies in Fiscal Year '28 and also in Fiscal Year '29 to help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and other staff. The Eleventh Court of Appeals, in conjunction with the rest of the judicial branch, therefore requests a 3% increase in staff salaries in Fiscal Year '28 and an additional 3% increase in Fiscal Year '29.

EXTERNAL/INTERNAL FACTORS:

The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts.

PCLS TRACKING KEY:

Agency code: 231 Agency name: Eleventh Court of Appeals District, Eastland

Code	Description	Excp 2028	Excp 2029
Item Name: Restore the 3% Budget Cut			
Allocation to Strategy: 1-1-1 Appellate Court Operations			
STRATEGY IMPACT ON OUTCOME MEASURES:			
	<u>1</u> Clearance Rate	100.00%	100.00%
OBJECTS OF EXPENSE:			
	1001 SALARIES AND WAGES	50,870	50,870
TOTAL, OBJECT OF EXPENSE		\$50,870	\$50,870
METHOD OF FINANCING:			
	1 General Revenue Fund	50,870	50,870
TOTAL, METHOD OF FINANCING		\$50,870	\$50,870

4.B. Exceptional Items Strategy Allocation Schedule90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026

TIME: 1:23:30PM

Agency code: **231**Agency name: **Eleventh Court of Appeals District, Eastland**

Code	Description	Excp 2028	Excp 2029
Item Name:		Restore the 3% Budget Cut	
Allocation to Strategy:		1-1-2 Appellate Justice Salaries. Estimated and Nontransferable	
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	17,750	17,750
1002	OTHER PERSONNEL COSTS	887	887
2009	OTHER OPERATING EXPENSE	178	178
TOTAL, OBJECT OF EXPENSE		\$18,815	\$18,815
METHOD OF FINANCING:			
1	General Revenue Fund	18,815	18,815
TOTAL, METHOD OF FINANCING		\$18,815	\$18,815

4.B. Exceptional Items Strategy Allocation Schedule

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026

TIME: 1:23:30PM

Agency code: **231**Agency name: **Eleventh Court of Appeals District, Eastland**

Code	Description	Excp 2028	Excp 2029
Item Name:		Additional full time staff attorneys due to the substantial increase in new case filings	
Allocation to Strategy:		1-1-1	Appellate Court Operations
STRATEGY IMPACT ON OUTCOME MEASURES:			
<u>1</u>	Clearance Rate	100.00%	100.00%
OUTPUT MEASURES:			
<u>1</u>	Number of Civil Cases Disposed	85.00	85.00
<u>2</u>	Number of Criminal Cases Disposed	91.00	91.00
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	568,000	568,000
2009	OTHER OPERATING EXPENSE	28,766	25,466
TOTAL, OBJECT OF EXPENSE		\$596,766	\$593,466
METHOD OF FINANCING:			
1	General Revenue Fund	596,766	593,466
TOTAL, METHOD OF FINANCING		\$596,766	\$593,466
FULL-TIME EQUIVALENT POSITIONS (FTE):		4.0	4.0

Agency code: 231		Agency name: Eleventh Court of Appeals District, Eastland	
Code	Description	Excp 2028	Excp 2029
Item Name:		Recruitment and Retention of Judicial-Branch Staff	
Allocation to Strategy:		1-1-1	Appellate Court Operations
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	45,625	92,620
2009	OTHER OPERATING EXPENSE	684	703
TOTAL, OBJECT OF EXPENSE		\$46,309	\$93,323
METHOD OF FINANCING:			
1	General Revenue Fund	46,309	93,323
TOTAL, METHOD OF FINANCING		\$46,309	\$93,323

4.C. Exceptional Items Strategy Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME: 1:23:30PM

Agency Code: **231** Agency name: **Eleventh Court of Appeals District, Eastland**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Excp 2028	Excp 2029
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OUTPUT MEASURES:

<u>1</u>	Number of Civil Cases Disposed	85.00	85.00
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<u>2</u>	Number of Criminal Cases Disposed	91.00	91.00
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OBJECTS OF EXPENSE:

1001	SALARIES AND WAGES	664,495	711,490
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2009	OTHER OPERATING EXPENSE	29,450	26,169
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Total, Objects of Expense		\$693,945	\$737,659
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METHOD OF FINANCING:

1	General Revenue Fund	693,945	737,659
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Total, Method of Finance		\$693,945	\$737,659
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FULL-TIME EQUIVALENT POSITIONS (FTE):

4.0	4.0
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EXCEPTIONAL ITEM(S) INCLUDED IN STRATEGY:

Restore the 3% Budget Cut

Additional full time staff attorneys due to the substantial increase in new case filings

Recruitment and Retention of Judicial-Branch Staff

4.C. Exceptional Items Strategy Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 9/4/2026
TIME: 1:23:30PM

Agency Code: **231** Agency name: **Eleventh Court of Appeals District, Eastland**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 2 Appellate Justice Salaries. Estimated and Nontransferable

Service Categories:

Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Excp 2028	Excp 2029
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OBJECTS OF EXPENSE:

1001	SALARIES AND WAGES	17,750	17,750
1002	OTHER PERSONNEL COSTS	887	887
2009	OTHER OPERATING EXPENSE	178	178

Total, Objects of Expense

\$18,815	\$18,815
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METHOD OF FINANCING:

1	General Revenue Fund	18,815	18,815
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Total, Method of Finance

\$18,815	\$18,815
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EXCEPTIONAL ITEM(S) INCLUDED IN STRATEGY:

Restore the 3% Budget Cut

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: 9/4/2026
Time: 1:23:31PM

Agency Code: 231 Agency: Eleventh Court of Appeals District, Eastland

COMPARISON TO STATEWIDE HUB PROCUREMENT GOALS

A. Fiscal Year - HUB Expenditure Information

Statewide HUB Goals	Procurement Category	% Goal	HUB Expenditures FY 2024			Total Expenditures		HUB Expenditures FY 2025			Total Expenditures	
			% Actual	Diff	Actual \$	FY 2024	% Goal	% Actual	Diff	Actual \$	FY 2025	
21.1%	Commodities	21.1 %	1.3%	-19.8%	\$725	\$55,493	21.1 %	1.0%	-20.1%	\$492	\$50,332	
	Total Expenditures		1.3%		\$725	\$55,493		1.0%		\$492	\$50,332	

B. Assessment of Attainment of HUB Procurement Goals

Attainment:

Due to the small size of the court and the nature of its function (judicial services), the court does not make a large amount of purchases during any given fiscal year, and most of the purchases made by the court are small spot purchases using time-efficient, noncompetitive procedures. Therefore, the opportunities for the court to make HUB purchases are limited.

Applicability:

The "Heavy Construction," "Building Construction," and "Professional Services" categories are not applicable to agency operations since the agency did not have any strategies or programs related to construction or professional services.

Factors Affecting Attainment:

Approximately 95% of the court's appropriations is expended on salaries and personnel costs. Sole-source purchases, including highly specialized legal publications purchased directly from the publishers, comprise a large portion of the court's remaining expenditures. Whenever possible and feasible, purchases are carried out through TXSmartBuy, WorkQuest, and other set-aside contractors. Additionally, the Office of Court Administration performs most of the computer-related purchases for the court.

C. Good-Faith Efforts to Increase HUB Participation

Outreach Efforts and Mentor-Protégé Programs:

Whenever possible and feasible, purchases are carried out through TXSmartBuy, WorkQuest, TCI, and other set-aside contractors. Additionally, the Office of Court Administration performs most of the computer-related purchases for the court.

HUB Program Staffing:

Due to the small size of the court, the court is unable to dedicate full-time staffing to increasing participation of HUBs. The court's accountant, who performs most purchasing activities for the court, makes a good-faith effort to identify and consider HUB vendors when making purchasing decisions.

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: **9/4/2026**
Time: **1:23:31PM**

Agency Code: **231** Agency: **Eleventh Court of Appeals District, Eastland**

Current and Future Good-Faith Efforts:

The court made good-faith efforts to increase purchases from HUB vendors. The court will continue to make good-faith efforts to meet or exceed its HUB goals in the coming biennium.

6.H. Estimated Total of All Agency Funds Outside the GAA Bill Pattern
Eleventh Court of Appeals (231)

ESTIMATED GRAND TOTAL OF AGENCY FUNDS OUTSIDE THE 2028-29 GAA BILL PATTERN	\$	217,367
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<u>Fund Name</u>		
Estimated Beginning Balance in FY 2026	\$	52,177
Estimated Revenues FY 2026	\$	82,670
Estimated Revenues FY 2027	\$	82,670
FY 2026-27 Total	\$	217,517
Estimated Beginning Balance in FY 2028	\$	52,027
Estimated Revenues FY 2028	\$	82,670
Estimated Revenues FY 2029	\$	82,670
FY 2028-29 Total	\$	217,367
Constitutional or Statutory Creation and Use of Funds:		
Texas Government Code Subchapter C, Sections 22.2121 and 22.201(l)		
Method of Calculation and Revenue Assumptions:		
The number of civil suits filed determines the actual revenue received. Additional overhead expenditures (operating costs) that exceed the amount of funds appropriated by the State also reduce the balance of this fund.		